

COMMITTEE ON PUBLIC SAFETY
SENATE AMENDMENTS TO S.B. 1416
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 8-901, Arizona Revised Statutes, is amended to
3 read:

4 8-901. Missing, kidnapped or runaway children; mandatory
5 reporting; training

6 A. A law enforcement agency that receives a report of a missing[.]
7 ~~[OR]~~ kidnapped [or runaway] child shall do all of the following:

8 1. Within two hours after receiving the report and all necessary
9 and available information, submit [ALL OF] the following information to
10 the Arizona crime information center[;] [AND] the national crime
11 information center computer networks ~~[and the national CENTER FOR missing~~
12 ~~and unidentified persons system [EXPLOITED CHILDREN]:~~

13 (a) The name, date of birth, sex, race, height, weight and eye and
14 hair color of the child.

15 ~~(b) A recent photograph of the child, if available.~~

16 ~~(c)~~ (b) The date and location of the last known contact with the
17 child.

18 ~~(d)~~ (c) The category under which the child is reported missing.

19 2. WITHIN ~~[TWO]~~ [TWENTY-FOUR] HOURS AFTER RECEIVING THE REPORT AND
20 ALL NECESSARY AND AVAILABLE INFORMATION, SUBMIT TO THE NATIONAL CENTER FOR
21 MISSING AND EXPLOITED CHILDREN ~~[A RECENT PHOTOGRAPH OF THE CHILD. THE LAW~~
22 ~~ENFORCEMENT AGENCY SHALL MAKE REASONABLE EFFORTS TO OBTAIN A RECENT~~
23 ~~PHOTOGRAPH OF THE CHILD.]~~ [ALL OF THE FOLLOWING INFORMATION:]

24 (a) A RECENT PHOTOGRAPH OF THE CHILD. IF AVAILABLE. THE LAW
25 ENFORCEMENT AGENCY SHALL MAKE REASONABLE EFFORTS TO OBTAIN A RECENT
26 PHOTOGRAPH OF THE CHILD.

27 (b) THE NAME, DATE OF BIRTH, SEX, RACE, HEIGHT, WEIGHT AND EYE AND
28 HAIR COLOR OF THE CHILD.

29 (c) THE CATEGORY UNDER WHICH THE CHILD IS REPORTED MISSING.]

1 3. WITHIN ~~[TWENTY-FORTY]~~ [TWENTY-FOUR] HOURS AFTER RECEIVING THE
2 REPORT, ~~[PROVIDE TO ALL LOCAL MEDIA OUTLETS AND POST TO SOCIAL MEDIA~~
3 ~~PLATFORMS:]~~
4 ~~(a) ALL OF THE FOLLOWING INFORMATION REGARDING THE CHILD AND, IF~~
5 ~~KNOWN, THE CHILD'S ABDUCTOR:]~~ [PROVIDE TO APPROPRIATE MEDIA OUTLETS AND
6 POST ON THE OFFICIAL SOCIAL MEDIA PLATFORMS OF THE LAW ENFORCEMENT AGENCY
7 ALL OF THE FOLLOWING INFORMATION:]
8 [~~(i)~~] [(a)] A COMPLETE PHYSICAL DESCRIPTION OF THE CHILD [~~AND, IF~~
9 ~~KNOWN, THE CHILD'S ABDUCTOR~~].
10 [~~(ii)~~] [(b)] THE LAST KNOWN LOCATION OF THE CHILD [~~OR, IF KNOWN,~~
11 ~~THE CHILD'S ABDUCTOR~~].
12 [~~(iii)~~] [(c)] A DESCRIPTION OF THE CLOTHING THE CHILD [~~OR, IF~~
13 ~~KNOWN, THE CHILD'S ABDUCTOR~~] WAS LAST KNOWN TO BE WEARING.
14 [~~(iv)~~] ~~A DESCRIPTION OF ANY VEHICLE THAT MAY BE INVOLVED WITH THE~~
15 ~~CHILD'S DISAPPEARANCE.]~~
16 [~~(v)~~] [(d)] CURRENT PHOTOGRAPHS OF THE CHILD [~~AND,~~] IF AVAILABLE
17 ~~[, THE CHILD'S ABDUCTOR]~~.
18 [~~(b)~~] [(e)] THE LAW ENFORCEMENT AGENCY TELEPHONE NUMBER.
19 [~~(c)~~] ~~INFORMATION REGARDING ANY OFFERED REWARDS.]~~
20 [4. WITHIN THIRTY DAYS AFTER RECEIVING THE REPORT, ENTER IN THE
21 NATIONAL MISSING AND UNIDENTIFIED PERSONS SYSTEM ALL REQUIRED AND
22 AVAILABLE INFORMATION, INCLUDING A PHOTOGRAPH OF THE CHILD THAT WAS TAKEN
23 IN THE PREVIOUS ONE HUNDRED EIGHTY DAYS AND MEDICAL AND DENTAL RECORDS, IF
24 AVAILABLE.]
25 ~~2.~~ [4.] [5.] Not later than thirty days after the original entry
26 of the record, verify and update the record with any additional
27 information, including, [where] [IF] available, medical and dental records
28 and a photograph taken during the previous one hundred eighty days.
29 ~~3.~~ [5.] [6.] Institute or assist with appropriate search and
30 investigative procedures.
31 ~~4.~~ [6.] [7.] Maintain a close liaison with state and local child
32 welfare systems and the national center for missing and exploited children
33 for the exchange of information and technical assistance in the missing
34 child case.
35 ~~5.~~ [7.] [8.] Grant permission to the national crime information
36 center terminal contractor for this state to update the missing child
37 record in the national crime information center computer networks with
38 additional information that is learned during the investigation and that
39 relates to the missing child.
40 ~~B. A law enforcement agency that receives a report of a missing,~~
41 ~~kidnapped or runaway child who is in the foster care system shall notify~~
42 ~~the national center for missing and exploited children in addition to the~~
43 ~~entities listed in subsection A of this section.~~
44 ~~C.~~ B. An entry may not be removed from any database or system
45 until the child is found or the case is closed.
46 C. EACH LAW ENFORCEMENT AGENCY IN THIS STATE SHALL DO BOTH OF THE
47 FOLLOWING:

1 1. DEVELOP, IMPLEMENT AND REGULARLY UPDATE TRAINING CRITERIA
2 REGARDING THE REQUIREMENTS OF THIS SECTION. THE TRAINING SHALL BE
3 COMPREHENSIVE AND SHALL CREATE A SOLID FOUNDATION OF KNOWLEDGE REGARDING
4 THE LEGAL CRITERIA AND PROCESSES REQUIRED BY THIS SECTION.

5 2. CONDUCT TRAINING ON THE PROVISIONS OF THIS SECTION FOR ALL
6 EMPLOYEES OF THE LAW ENFORCEMENT AGENCY, AT THE TIME OF HIRE AND
7 BIANNUALLY, WHO HAVE DIRECT INVOLVEMENT IN MISSING CHILDREN CASES,
8 INCLUDING THE SUPERVISORS OF THESE EMPLOYEES AND COMMUNICATION
9 DISPATCHERS. THE TRAINING SHALL INCLUDE A REVIEW OF ANY DEPARTMENT AND
10 STATE POLICIES REGARDING LOCATING MISSING OR ABDUCTED CHILDREN. THE
11 TRAINING SHALL BE COMPREHENSIVE AND SHALL CREATE A SOLID FOUNDATION OF
12 KNOWLEDGE REGARDING THE LEGAL CRITERIA AND PROCESSES REQUIRED BY THIS
13 SECTION.

14 [D. INFORMATION PROVIDED TO APPROPRIATE MEDIA OUTLETS AND POSTED ON
15 OFFICIAL LAW ENFORCEMENT SOCIAL MEDIA PLATFORMS PURSUANT TO SUBSECTION A,
16 PARAGRAPH 3 OF THIS SECTION MAY NOT CHARACTERIZE A CHILD AS A RUNAWAY
17 CHILD UNLESS THE LAW ENFORCEMENT AGENCY DETERMINES THAT THE
18 CHARACTERIZATION OF A CHILD AS A RUNAWAY CHILD IS NECESSARY TO PROTECT THE
19 CHILD'S SAFETY OR FURTHER AN ACTIVE INVESTIGATION. A LAW ENFORCEMENT
20 AGENCY IS NOT REQUIRED TO PROVIDE THE INFORMATION REQUIRED BY SUBSECTION
21 A, PARAGRAPH 3 OF THIS SECTION IF THE LAW ENFORCEMENT AGENCY DETERMINES
22 THAT THE INFORMATION WOULD INTERFERE WITH LOCATING A CHILD OR WOULD
23 COMPROMISE THE SAFETY OF A CHILD, AN ONGOING INVESTIGATION OR THE
24 APPREHENSION OF A SUSPECT. A LAW ENFORCEMENT AGENCY SHALL DOCUMENT ALL
25 DECISIONS REGARDING THE PROVISION OF THE INFORMATION REQUIRED BY
26 SUBSECTION A, PARAGRAPH 3 OF THIS SECTION.]

27 Enroll and engross to conform
28 Amend title to conform

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